

Court No. - 40

Case :- WRIT - C No. - 16025 of 2018

Petitioner :- Munna Lal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Prem Sagar Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

On the request of Sri Saurabh, learned counsel for the respondent Electricity Department put up tomorrow to enable him to inform the Court as to the compliance of Clause 6.8 (1) (b)(i) of U.P. Electricity Supply Code, 2005.

Order Date :- 3.5.2018

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Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Saurabh

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioner.

The petitioner has been subjected to assessment proceedings on account of consumption of electricity and also unauthorized utilization thereof for which action was taken under Sections 138/139 of the U.P. Electricity Act, 2003.

So far as the present recovery proceedings are concerned the same are an outcome of a provisional assessment and then a final assessment order calling upon the petitioner to make the deposit.

We may put on record that the petitioner on two previous occasions had approached this Court by filing Writ Petition No.45089 of 2016 that was disposed of on 23.09.2016 by quashing the recovery proceedings leaving it open for the issuance for a fresh notice. Learned counsel for the Electricity Department contends that that was yet another separate case of assessment other than the present proceedings.

A second writ petition being Writ Petition No.7305 of 2017 was again allowed keeping in view the judgment of the Division Bench in the case of **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ, 660.**

So far as the present proceedings are concerned, learned counsel for the Electricity Department has produced the copy of the notice dated 06.11.2017 for provisional assessment despatched by registered post on 10.07.2017. After having despatched the said notice the final order of assessment was passed on 06.11.2017 which was despatched by registered post on 17.11.2017 to the petitioner.

Thereafter the recovery proceedings were initiated for which the notice dated 08.12.2017 was despatched by registered post on 15.01.2018.

The photocopies of the despatch receipts of Post Office have also been placed before this Court. We are therefore satisfied

that appropriate steps appear to have been taken by the respondent Electricity Department before making a final assessment against the petitioner vide order dated 06.11.2017.

In the above circumstances the final assessment can be assailed by the petitioner by filing an appeal under Section 127 of the U.P. Electricity Act, 2003 and consequently in view of such remedy being available to the petitioner we are not inclined to interfere with the consequential recovery proceedings. In the event any appeal is filed or any orders are passed the recovery shall abide by the appellate order. The writ petition is consigned to records with the said observations.

Order Date :- 4.5.2018

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